

Enactment to be Amended.	Nature of Amendment.
Housing of the Working Classes Act, 1890 (53 & 54 Vict. c. 70): Second Schedule—	
Paragraph (1) - .	For the words “as soon as practicable after the passing of the confirming Act,” there shall be substituted the words “before making an application for the appointment of an arbitrator as hereinafter mentioned.”
Paragraph (9) - .	The words “(subject to the provisions concerning an appeal hereinafter contained)” shall be omitted.
Paragraph (10) - .	The words “once in each of three consecutive weeks” and the word “last” shall be omitted.
Paragraph (12) - .	The words from “The local authority, or any person interested” to the end of the paragraph shall be omitted.
Paragraphs (26) and (27).	These paragraphs shall be omitted.
Paragraph 29 (1) (c) - .	For the words “before the appointment of the arbitrator” there shall be substituted the words “not less than fourteen days before the date of the arbitration in that particular case.”
Paragraph (30) - .	After the word “documents” there shall be inserted the words “other than any formal offer made by the local authority.”
Paragraph (32) - .	Substitute “a” for “some one and the same.”

CHAPTER 46.

An Act to amend the Law relating to the Police in Great Britain. [15th August 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1) For the purpose of enabling the members of the police forces of England and Wales to consider and bring to the notice of the police authorities and the Secretary of State all the matters affecting their welfare and efficiency, other than questions of discipline and promotion affecting individuals, there shall be established in accordance with the Schedule to this Act an organisation to be called the Police Federation, which shall act through local and central representative bodies as provided in that schedule.

Constitution
of Police
Federation.

(2) The Police Federation and every branch thereof shall be entirely independent of and unassociated with any body or person outside the police service.

Prohibition
against con-
stables being
members of
trade unions.

2.—(1) Subject as aforesaid, it shall not be lawful for a member of a police force to become, or after the expiration of one month from the passing of this Act to be, a member of any trade union, or of any association having for its objects, or one of its objects, to control or influence the pay, pensions, or conditions of service of any police force; and any member of a police force who contravenes this provision shall be disqualified for continuing to be a member of the force; and, if any member of a police force continues to act as such after becoming so disqualified, he shall forfeit all pension rights and be disqualified for being thereafter employed in any police force:

Provided that, where a man was a member of a trade union before becoming a constable, he may, with the consent of the chief officer of police, continue to be a member of that union during the time of his service in the police force.

(2) If any question arises whether any body is a trade union or an association to which this section applies, the question shall be determined by the Minister of Labour.

Penalty on
persons
causing dis-
affection, &c.

3. If any person causes, or attempts to cause, or does any act calculated to cause disaffection amongst the members of any police force, or induces, or attempts to induce, or does any act calculated to induce any member of a police force to withhold his services or to commit breaches of discipline, he shall be guilty of a misdemeanour, and shall be liable on conviction on indictment to imprisonment, with or without hard labour, for a term not exceeding two years, or on summary conviction, to imprisonment, with or without hard labour, for a term not exceeding three months, or to a fine not exceeding fifty pounds, or to both such imprisonment and fine, and in either case, if a member of a police force, shall forfeit all pension rights and be disqualified for being a member of any police force: Provided that, where the person convicted of any such offence was a member of a police force and was not sentenced to imprisonment without the option of a fine, the police authority may, if they think fit, pay to him the whole or any part of the rateable deductions which may have been made from his pay.

Power of
Secretary of
State to regu-
late pay, &c.,
of police
forces.

4.—(1) It shall be lawful for the Secretary of State to make regulations as to the government, mutual aid, pay, allowances, pensions, clothing, expenses and conditions of service of the members of all police forces within England and Wales, and every police authority shall comply with the regulations so made.

(2) A draft of any regulations proposed to be so made as aforesaid shall be submitted to a council, consisting of the joint central committee or a deputation from the joint central committee of the Police Federation and representatives of the chief

officers of police and police authorities selected for the purpose by the Secretary of State, after consultation with the County Councils Association and the Association of Municipal Corporations, and before making the regulations the Secretary of State shall consider any representations made by such council.

5. The subsection which, by virtue of section one of the Police Constables (Naval and Military Service) Act, 1914, is to be substituted for subsection (2) of section one of the Police Reservists (Allowances) Act, 1914, shall have effect and shall be deemed always to have had effect as if for the words "pensions" and allowances equal to one half the amount payable out of "naval or military funds" there were substituted the words "pensions and allowances in addition to the amount payable out of naval, military, or air-force funds," and as if it authorised pensions and allowances granted thereunder to be reckoned on the rate of pay which the man would have been receiving at the date of his death or disablement had he then been a member of the police force.

Amendment of
4 & 5 Geo. 5.
c. 34. s. 1 and
c. 80. s. 1.

6. At the end of paragraph eleven of the First Schedule to the Police Act, 1890, there shall be inserted the words "so, however, that the pension shall not be less than if the constable had continued in his former rank."

Amendment of
provisions as to
police pen-
sions.

53 & 54 Vict.
c. 45.

7. So much of section twenty-three of the Metropolitan Police Act, 1829, as amended by any subsequent enactment, as limits the annual sum to be provided for the purposes of the Metropolitan Police, and so much of section one hundred and ninety-seven of the Municipal Corporations Act, 1882, as limits the amount of the watch rate, and so much of any other Act, whether public, general, or local, as limits any rate which may be raised for the purposes of the police, shall cease to have effect.

Abolition of
limits on police
rates.

10 Geo. 4. c. 44.

45 & 46 Vict.
c. 50.

8.—(1) The amounts payable or transferable by a county council under subsection (2) of section twenty-four of the Local Government Act, 1888, on account of police in respect of the year ending the thirty-first day of March, nineteen hundred and twenty, or any subsequent year shall, instead of being calculated in manner provided in paragraphs (i) and (j) of that subsection, be the full amounts payable or transferable in accordance with the said paragraphs in respect of the year ending the thirty-first day of March, nineteen hundred and fifteen.

Calculation of
amount pay-
able out of
Exchequer
contribution
on account of
police.

51 & 52 Vict.
c. 41.

(2) This section shall be construed as one with the Local Government Act, 1888, and shall apply to county borough councils in like manner as it applies to county councils.

9. It shall be lawful for the police authority of any police force, out of the police fund, to make contributions to any provident fund approved by the Secretary of State out of which provision is made for payments to members of the police force

Contributions
out of police
funds to provi-
dent funds.

on their retirement, or, on their death, to their widows, dependants, or representatives.

Penalty on unauthorised use of police uniform.

10. If any person not being a member of a police force wears without the permission of the police authority the uniform of the police force, or any dress having the appearance or bearing any of the distinctive marks of that uniform, he shall on summary conviction be liable to a fine not exceeding ten pounds :

Provided that this section shall not prevent persons from wearing any uniform or dress in the course of a stage play or music hall or circus performance.

Powers of Deputy Assistant Commissioner of Metropolitan Police.

11. An officer of the Metropolitan Police Force appointed by the Secretary of State to act as Deputy Assistant Commissioner shall, for the purpose of receiving declarations of men appointed to act as constables and counter-signing the drafts and orders for money drawn on the Bank of England by the Receiver for the Metropolitan Police District, have all such powers as are exercisable by an Assistant Commissioner of the Metropolitan Police.

Police forces to which Act applies.

12. This Act shall apply to the City of London Police and to every police force to which the Police Act, 1890, applies ; and, in relation to the City of London Police, the expressions " police authority " and " police fund " mean the mayor, aldermen, and commonalty of the City of London in common council assembled, and the fund out of which the expenses of the city police are defrayed, and, in relation to any other police force, have the same meaning as in the Police Act, 1890.

Application to Scotland.

13.—(1) This Act shall apply to Scotland, with the substitution of references to the Secretary for Scotland for references to the Secretary of State, of references to Scotland for references to England and Wales, and of references to the Police (Scotland) Act, 1890, for references to the Police Act, 1890, and in the case of the schedule, subject to such modifications as the Secretary for Scotland may by order prescribe for the purpose of adapting the provisions of that schedule to the circumstances of Scotland.

53 & 54 Vict. c. 67.

(2) As from the fifteenth day of May, nineteen hundred and nineteen, a limit of three shillings in the pound shall be substituted in section three hundred and forty of the Burgh Police (Scotland) Act, 1892, for the rating limit prescribed therein ; and the rating limit for police purposes prescribed in any local Act shall be correspondingly raised.

55 & 56 Vict. c. 55.

(3) As from the first day of April, nineteen hundred and nineteen, pensions, gratuities, and allowances which are required by the Police (Scotland) Act, 1890, to be calculated according to the average annual amount of pay received by a constable for the three years next before the date of his retirement or death shall, instead of being so calculated (except where the

constable at the date of his retirement or death holds a rank to which he has been promoted within the said three years), be calculated according to the amount of his annual pay at the date of his retirement or death, so, however, that the pension shall not be less than if the constable had continued in his former rank.

14. In making regulations as to government, mutual aid, pay, allowances, pensions, clothing, expenses and conditions of service of members of the police force, the Secretary of State and the Secretary for Scotland shall act in consultation one with another.

Consultation
between Secre-
tary of State
and Secretary
for Scotland.

15.—(1) This Act may be cited as the Police Act, 1919.

(2) This Act shall not extend to Ireland.

Short title and
extent.

SCHEDULE.

Section 1.

PART I.

POLICE FEDERATION.

Constitution of Police Federation.

1. The Federation shall consist of all members for the time being of the several police forces in England and Wales below the rank of superintendent, and the Federation shall act through Branch Boards, Central Conferences, and Central Committees as is hereinafter provided.

The Branch Boards.

2. The members of each police force below the rank of superintendent shall form a Branch of the Federation, and in each Police Force there shall be constituted three Branch Boards—one for constables, one for sergeants, and one for inspectors.

3. Where the number of any rank in any Police Force does not exceed seven, all members of that rank shall form the Branch Board. Where the number of any rank exceeds seven, there shall be elected by the members of that rank from amongst their number a Branch Board consisting of five, or, if the authorised strength of the force exceeds two hundred, seven members : Provided that, in the case of the Metropolitan Police Force and any other Police Force containing more than three divisions, a Branch Board shall consist of one member for each division elected by the members of the force of the rank in question belonging to that division.

In the case of the Metropolitan Police Force, inspectors, sergeants, and constables attached to the following departments, that is to say :—

- (a) The Commissioner's Office (Uniform Branch, including detachments) ;
- (b) The Public Carriage Department ;
- (c) The Criminal Investigation Department (including all officers, whether serving at Central Office or elsewhere) ;

shall, for the purposes of the foregoing proviso, be treated as if each such department formed a separate division to which they belonged.

4. Subject as aforesaid, all members of the force of each rank shall have the right to vote at the election of the Branch Board for that rank.

5. The elections shall take place annually in October and the annual meetings of all Boards shall be held not later than the seventh day of November.

6. The members of each Board shall at the annual meeting elect a delegate or delegates to the Central Conference as hereinafter provided.

7. Subject as aforesaid, the three Branch Boards in any Police Force or any two of them may by agreement sit together as one Board either for any special purpose or regularly for all purposes of common interest.

8. A Branch Board, in addition to submitting any representation to the Chief Officer of police or the Police Authority, may submit it also to the Secretary of State.

The Central Conferences and Central Committees.

9. The Central Conference for each rank shall be held annually in November.

10. Each Conference shall consist of delegates elected by the members of the Branch Boards of corresponding rank of all police forces in Eng and Wales in the following proportions :—If the authorised strength of the force is less than 200, one delegate for each board ; if the authorised strength is between 200 and 500, two delegates ; if between 500 and 1,000, three delegates ; if more than 1,000, four delegates. The Metropolitan Police Force shall be represented on each conference by a number of representatives equal to the number of members of the Branch Board in question, and the delegates shall, unless a Branch Board otherwise decide, be the members of that Board.

11. A delegate must be a member of the police force which he represents.

12. The members of each Conference shall elect from amongst their members a Central Committee of six members, of whom two shall be elected by the delegates of the Metropolitan and City of London Police Forces, two by the delegates of the County Police Forces and two by the delegates of the Borough Police Forces.

13. Subject as aforesaid, the three Central Committees or any two of them may by agreement sit together as a Joint Committee for any special purpose, or regularly for all purposes of common interest. They may also be summoned to sit as a Joint Committee by the Secretary of State for the consideration of any question referred to them by him.

14. The Central Committees either separately or as a Joint Committee may submit representations in writing to the Secretary of State, and in matters of importance the Secretary of State will be prepared to give any Committee or a deputation from the Committee a personal hearing.

Elections.

35 & 36 Vict.
c. 33.

15. All elections shall be by secret ballot and the provisions of the Ballot Act, 1872, for securing secrecy and freedom from interference in voting as set out and adapted in Part II. of this schedule, shall apply in respect of all elections under this schedule.

16. At any election under this schedule each elector may give one vote and no more for each of any number of candidates not exceeding the number to be elected.

17. Subject to the provisions of this schedule, each Branch Board may make regulations as to the mode of election of the members of the Board and of the delegates to the Central Conference returned by the Board, and as to the filling of casual vacancies occurring amongst

such members and delegates, and each Central Committee may make regulations as to the mode of election of the members thereof by the Central Conference and as to the filling of casual vacancies occurring amongst the members of the Committee: Provided that, in the case of first elections, regulations as to the mode of elections shall, subject as aforesaid, be made by the Secretary of State.

Police Councils.

18. The Secretary of State may arrange for the holding of Police Councils for the consideration of general questions affecting the Police, at which the Joint Central Committee or a deputation from that Committee may be invited to meet representatives of Police Authorities, Chief Officers of Police, and Superintendents, under the chairmanship of the Secretary of State or of an officer of the Home Department, or other person appointed for the purpose by the Secretary of State.

Officers and Meetings.

19. Each Branch Board, Central Conference, and Central Committee shall choose its chairman and secretary from among its own members.

20. The chairman at any meeting of a Branch Board Central Conference or Central Committee at which he is present shall have a second or casting vote.

21. Subject to the provisions of this schedule, every Branch Board Central Conference or Central Committee may regulate their own procedure, including the appointment of committees or sub-committees: Provided that the first meeting of the several Boards, Conferences, and Committees shall be convened in such manner, and the procedure to be followed thereat shall be such, as the Secretary of State may direct.

22. Branch Boards may hold four quarterly meetings (including the annual meeting), each lasting one day, but additional meetings for any special purpose may be held with the consent of the Chief Officer of Police.

The annual meetings of the Central Conferences shall not last more than two days.

Each Central Committee may hold meetings once in two months, each lasting one day, but additional meetings for special purposes may be held with the consent of the Secretary of State.

23. Except where, in special circumstances, an officer of police is required for duty for which no substitute is available, leave shall be given for attendance at all such meetings duly held and every such attendance shall, as regards allowances and expenses, be deemed to be an occasion of police duty.

PART II.

THE PROVISIONS OF THE BALLOT ACT, 1872, AS APPLIED AND ADAPTED.

Every person in attendance at a polling station or other place of voting shall maintain and aid in maintaining the secrecy of the voting in such station or place, and shall not communicate, except for some purpose authorised by law, before the poll is closed, to any person any information as to the name or other means of identification of any elector who has or has not applied for a ballot paper or voted at that station or place, and no such person and no person whosoever shall interfere with or attempt to interfere with a voter when marking his vote, or otherwise attempt to obtain in the polling station or other place

of voting information as to the candidate for whom any voter in such station or place is about to vote or has voted, or communicate at any time to any person any information obtained in a polling station or other place of voting as to the candidate for whom any voter in such station or place is about to vote or has voted. Every person in attendance at the counting of the votes shall maintain and aid in maintaining the secrecy of the voting and shall not communicate any information obtained at such counting as to the candidate for whom any vote is given in any particular ballot paper. No person shall directly or indirectly induce any voter to display his ballot paper after he shall have marked the same so as to make known to any person the name of the candidate for or against whom he has so marked his vote.

Every person who acts in contravention of the provisions of this section shall be liable on summary conviction to imprisonment for a term not exceeding six months with or without hard labour.

CHAPTER 47.

An Act to provide for the establishment of a Court of Appeal for certain of His Majesty's Colonies in the West Indies. [15th August 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Constitution of
West Indian
Court of
Appeal.

1.—(1) There shall be a Court of Appeal for the West Indian Colonies to which this Act applies, which shall be called the West Indian Court of Appeal, and is in this Act referred to as "the Court of Appeal."

(2) The colonies to which this Act applies shall be the colonies of Trinidad and Tobago, British Guiana, Barbados, the Leeward Islands, Grenada, St. Lucia, and St. Vincent :

Provided that His Majesty may, by Order in Council from time to time, add any other colony to the number of colonies to which this Act applies, or direct that this Act shall no longer apply to any colony specified in the Order if, in any such case, His Majesty is satisfied that due provision in that behalf has been made by the Legislature of the colony in question.

(3) The Judges of the Court of Appeal shall be the Chief Justices of the colonies to which this Act, for the time being, applies :

Provided that—

(a) if the Chief Justice of the colony in which the Court of Appeal is at any time sitting is unable from any cause to sit, the Governor of the colony may appoint a person appearing to him to be duly qualified instead of such Chief Justice to sit and hear either a particular appeal or all appeals to be heard during the whole of any particular sittings of the court in that colony ; and